# Brazoria County District Court

Cause No. 2024-CV-0048

Nathaniel Fleming, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

## Plaintiff's Original Petition

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| **Filed:** | February 9, 2024 |
| **Plaintiff's counsel:** | Matthew Day, Cooper & Quinn LLP |

PARTIES

Plaintiff is Nathaniel Fleming, an individual residing in Texas, who brings this action in his or her own right as the injured party and as the insured claimant under a personal automobile policy issued by the Defendant insurer. Defendant is an insurance company authorized to write automobile coverage in the State of Texas and may be served through its registered agent for service of process.

FACTS

On July 12, 2023, Plaintiff was lawfully operating his or her vehicle through a signalized intersection in Pasadena, Texas. A second vehicle enteerd the intersection and struck the side of Plaintiff's vehicle in a broadside collision. The impact caused Plaintiff's vehicle to move sharply and forced Plaintiff's head and neck to whip laterally within the cabin. Plaintiff reported the collision to the Defendant insurer, and a claim was opened under the policy's coverage for bodily injury and porperty damage. Plaintiff has cooperated fully with the claim process, provided the requested documentation, and submitted medical records and teratment notes.

NEGLIGENCE

The operator of the other vehicle owed a duty to exercise ordinary care in entering and crosisng the intersection, including keeping a proper lookout and yielding the right of way. That operator breached this duty by failing to yield and proceeding into the path of Plaintiff's vehicle. This breach was the proximate cause of the collision and of Plaintiff's resulting injuries. Defendant insurer, which owes its insured and covered claimants a duty of good faith and fair dealing under Texas law and the terms of the policy, has failed to pay the benefits owed for the covered loss within a reasonable time after its liability became reasonably clear.

DAMAGES

As a direct result of the collision, Plaintiff sustained a cervical neck strain, with pain, stiffness, mucsle spasm, and reduced range of motion. Plaintiff has incurerd reasonable and necessary medical expenses for evaluation and treatment and will likely require additional care. Plaintiff has also suffered lost time from ordinary activities and diminished enjoyment of life. Plaintiff seeks recovery of policy benefits, statutory interest, attorney's fees as permitted by law, and all other relief to which Plaintiff may be entitled. Plaintiff demands damages in the amount of $201,000.00.